THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention o
n the International Maritime Organization concerning the functions of the Marine Environ
ment Protection Committee conferred upon it by international conventions for the prevent
ion and control of marine pollution from ships, NOTING article 16 of the International C
onvention for the Prevention of Pollution from Ships, 1973, as modified by the Protocol
of 1978 relating thereto (MARPOL), which specifies the amendment procedure and confers u
pon the appropriate body of the Organization the function of considering and adopting am
endments thereto, - Ships, 1973, as modified by the Protocol of 1978 relating thereto (M
ARPOL), which specifies the amendment procedure and confers upon the appropriate body of
the Organization the function of considering and adopting amendments thereto, RECOGNIZIN
G the need to provide a mandatory framework for ships operating in polar waters due to t
he additional demands on ships, their systems and operation, which go beyond the existin
g requirements of MARPOL, and other relevant binding IMO instruments, NOTING resolution
MEPC.264(68), by which the Committee adopted the International Code for Ships Operating
in Polar Waters (Polar Code) with respect to its environment-related provisions, NOTING
ALSO that the Maritime Safety Committee, at its ninety-fourth session, adopted, by resol
ution MSC.385(94), the International Code for Ships Operating in Polar Waters with respe
ct to its safety-related provisions, and by resolution MSC.386(94), amendments to the 19
74 SOLAS Convention to make the safety-related provisions of the Polar Code mandatory, H
AVING CONSIDERED proposed amendments to MARPOL Annexes I, II, IV and V to make - the 197
4 SOLAS Convention to make the safety-related provisions of the Polar Code mandatory, HA
VING CONSIDERED proposed amendments to MARPOL Annexes I, II, IV and V to make the enviro
nment-related provisions of the Polar Code mandatory, 1 ADOPTS, in accordance with artic
le 16(2)(d) of MARPOL, amendments to Annexes I, II, IV and V, the text of which is set o
ut in the annex to the present resolution; 2 DETERMINES, in accordance with article 16(2
)(f)(iii) of MARPOL, that the amendments shall be deemed to have been accepted on 1 July
2016, unless, prior to that date, not less than one third of the Parties or Parties the
combined merchant fleets of which constitute not less than 50% of the gross tonnage of t
he world's merchant fleet, have communicated to the Organization their objection to the
amendments; 3 INVITES the Parties to no